

## Terms of Service

Effective Date: July 16 2026

### **ACCEPTANCE OF TERMS**

These Terms of Service ("Terms") constitute a legally binding agreement between you ("Member," "User," or "Provider," as applicable) and RSQMECLUB.COM ("RSQMECLUB.COM," "Company," "we," "our," or "us"), RSQMECLUB.COM, a Washington State sole proprietorship, governing your access to and use of the RSQMECLUB.COM website, mobile application, and related services (collectively, the "Services").

By creating an account, purchasing a membership, registering as a Provider, downloading the Application, accessing the Website, or otherwise using the Services, you acknowledge that you have read, understood, and agree to be bound by these Terms and by the Company's Privacy Policy. If you do not agree, you must discontinue use of the Services immediately.

The Services are intended solely for lawful use within jurisdictions in which RSQMECLUB.COM operates.

These Terms of Service contain a dispute resolution clause that impacts your rights regarding how to resolve disputes. Please read it carefully.

### **DEFINITIONS**

- "Application" means the RSQMECLUB.COM mobile application.
- "Company" means RSQMECLUB.COM, a Washington State sole proprietorship.
- "Service Dispatch" means the electronic transmission of a Service Request to one or more independent Providers. A Service Dispatch is not complete until accepted by a Provider.
- "Eligible Vehicle" means a vehicle that qualifies for Membership Benefits under the applicable Membership Plan.
- "Member" means a person holding an active RSQMECLUB.COM membership.
- "Membership Benefits" means the roadside assistance benefits associated with the Member's selected subscription plan.
- "Service Provider" means an independent third-party service provider using, or supplying operational support to, the platform.
- "Service Request" means a request submitted through the Application or Website for roadside assistance.
- "Services" means the technology platform, membership administration, Service

dispatch coordination, payment processing, and related services provided by RSQMECLUB.COM.

## **TECHNOLOGY MARKETPLACE**

RSQMECLUB.COM operates exclusively as a technology marketplace connecting Members with independent roadside assistance Service Providers.

RSQMECLUB.COM does not perform roadside assistance, towing, automotive repair, lockout services, fuel delivery, or vehicle recovery. Service Providers independently determine whether to accept Service Requests and are solely responsible for the services they perform.

Nothing in these Terms shall be interpreted as creating an employment, agency, franchise, partnership, or joint venture relationship between RSQMECLUB.COM and any Provider.

RSQMECLUB.COM complies with applicable motor club, roadside assistance, and automotive service regulations in jurisdictions where required. Membership Benefits are provided subject to such regulatory requirements.

## **ELIGIBILITY**

Members must be at least eighteen (18) years of age and legally capable of entering into binding agreements.

Service Providers must successfully complete Company onboarding requirements, including identity verification and any required licensing, insurance, certifications, and tax documentation required by applicable law.

The Company reserves the right to deny, suspend, or terminate any account that fails to satisfy these eligibility requirements.

## **MEMBERSHIP AGREEMENT**

### **Membership Plans (Membership Plan benefits described in Appendix A).**

RSQMECLUB.COM offers Bronze, Silver, and Gold subscription memberships. Membership benefits, pricing, annual service limits, mileage allowances, cooldown periods, and covered services are published by the Company and may be updated upon reasonable notice.

### **Membership Nature**

Membership is a subscription to participate in the RSQMECLUB.COM roadside assistance program. Membership fees are not insurance premiums, do not establish a trust or escrow, do not accrue cash value, and do not guarantee future services.

### **Auto Renewal**

Unless cancelled, memberships automatically renew at the end of each billing cycle using the payment method on file. The Member authorizes recurring charges until cancellation becomes effective.

Before renewal, RSQMECLUB.COM will provide renewal notices as required by applicable law. Members may cancel at any time through the Application or by contacting customer support. Cancellation is effective at the end of the current billing period unless otherwise required by law.

### **Upgrades and Downgrades**

The Company may permit upgrades or downgrades between Membership Plans. Any pricing adjustments, proration, or effective dates shall be determined by the Company and disclosed at the time of the change.

### **Fair Use**

Membership benefits are intended for reasonable personal use. Excessive, abusive, fraudulent, commercial, or repetitive use may result in benefit limitations, suspension, or termination.

### **Non-transferability**

Memberships are personal to the enrolled Member and may not be sold, assigned, shared, transferred, or used by another individual except where expressly authorized by the Company.

## **COVERED SERVICES AND VEHICLE ELIGIBILITY**

### **Covered Services**

Depending upon the applicable Membership Plan, benefits may include jump starts, flat tire assistance, lockout assistance, fuel delivery, towing, winching, or other roadside services published by the Company.

### **Eligible Vehicles (Eligible Vehicles defined in Appendix B).**

Coverage generally applies to privately owned passenger vehicles that satisfy Company eligibility requirements. Certain vehicle classes may be excluded or subject to additional fees.

**Excluded Vehicles (Excluded Vehicles defined in Appendix B).**

Unless expressly approved, commercial vehicles, vehicles used for rideshare or delivery operations while engaged in commercial activity, oversized vehicles, trailers, RVs, buses, heavy trucks, salvage vehicles, modified vehicles, and vehicles located off maintained roadways may be excluded.

**Geographic Availability (Current Service Areas listed in Appendix D).**

Service availability depends upon Service Provider participation, weather, road conditions, traffic, cellular connectivity, legal restrictions, and commercial feasibility. Coverage may not be available in all locations.

**Additional Charges**

Members are responsible for charges that exceed Membership Benefits, including additional towing mileage, specialty equipment, excessive labor, fuel costs where not included, tolls, storage, recovery, or other approved overages.

**SERVICE REQUESTS AND SERVICE DISPATCH****Request Submission**

A Service Request may be submitted through the Application or other Company-approved methods. Submission alone does not create an obligation to perform services.

**Service Dispatch Process**

The Company uses commercially reasonable efforts to identify an available independent Provider. Service Dispatch occurs only after a Provider affirmatively accepts the request.

**Estimated Arrival Times**

Estimated arrival times are estimates only and are not guarantees. Actual arrival may be affected by traffic, weather, emergencies, GPS accuracy, provider workload, and network outages.

**Member Responsibilities**

The Member must provide accurate location information, remain reasonably available by telephone or in-app messaging, maintain a safe environment for the Provider, disclose known hazards, and comply with lawful instructions from emergency personnel.

**Refusal or Cancellation**

The Company or Service Provider may refuse, delay, or cancel service when conditions are unsafe, unlawful, inaccessible, fraudulent, commercially impractical, or beyond reasonable operational control.

**Emergency Situations**

RSQMECLUB.COM is not an emergency response service. If you are experiencing a medical emergency, fire, crime, traffic accident involving injuries, or any situation

requiring immediate governmental assistance, call 911 immediately before requesting roadside assistance.

## **PROVIDER MARKETPLACE**

### **Independent Service Provider**

Service Providers are independent contractors and are not employees, agents, franchisees, partners, or joint venturers of RSQMECLUB.COM. Providers control the manner and means by which they perform services and are solely responsible for complying with applicable laws.

RSQMECLUB.COM is not responsible for damage to vehicles or property caused by independent Service Providers. Service Providers are solely responsible for the manner and means of performing services.

### **Service Provider Qualifications**

Service Providers must maintain all licenses, permits, registrations, insurance, equipment, and certifications required by applicable law and Company onboarding standards. Service Providers are responsible for maintaining accurate account information.

### **Service Provider Acceptance**

Service Providers may accept or decline Service Requests at their sole discretion. RSQMECLUB.COM does not guarantee that any request will be accepted or fulfilled.

### **Claims and Payment Approval**

Service Provider compensation is subject to successful completion of the requested service, submission of required documentation, verification by the Company, and compliance with Company policies. RSQMECLUB.COM may deny, reduce, or withhold payment for fraudulent, duplicate, incomplete, undocumented, unsafe, or unauthorized claims.

### **Fraud Prevention**

The Company reserves the right to investigate suspected fraud, abuse, collusion, duplicate accounts, falsified documentation, GPS manipulation, or other conduct that threatens the integrity of the Services. Accounts may be suspended during an investigation.

## **PAYMENTS. BILLING. REFUNDS. AND CHARGEBACKS**

### **Payment Authorization**

By enrolling in a Membership or approving additional charges, Members authorize RSQMECLUB.COM and its authorized payment processor, including Stripe or any

successor processor, to charge the payment method on file for recurring membership fees and approved service-related overages.

### **Failed Payments**

If a payment method is declined, expired, or otherwise unavailable, the Company may retry the transaction, suspend Membership Benefits, restrict access to the Services, or require an alternate payment method before additional service requests are accepted.

### **Overage Charges (described in Appendix E).**

Members remain responsible for charges exceeding Membership Benefits, including excess towing mileage, specialty equipment, fuel costs where not included, recovery services, storage, tolls, taxes, and other disclosed charges.

### **Refund Policy**

Membership fees are generally non-refundable except where required by applicable law or expressly approved by the Company. Refund requests will be evaluated on a case-by-case basis.

Where required by law, Members may cancel within the applicable statutory cancellation period for a full refund if no services have been used.

### **Chargebacks**

Members agree not to initiate chargebacks for valid subscription charges or approved service charges without first providing the Company a reasonable opportunity to investigate and resolve the dispute. The Company may contest improper chargebacks using Service Dispatch records, GPS data, communications, invoices, photographs, and other relevant business records.

### **Collections**

The Company may recover unpaid balances, chargeback costs, collection expenses, reasonable attorneys' fees where permitted by law, and other amounts lawfully owed.

## **MOBILE APPLICATION, APP STORE, AND ELECTRONIC COMMUNICATIONS**

### **License**

Subject to these Terms, RSQMECLUB.COM grants Members a limited, revocable, non-exclusive, non-transferable license to install and use the Application solely for personal, non-commercial purposes.

**Apple App Store and Google Play**

The Application may be distributed through the Apple App Store, Google Play Store, or other authorized marketplaces. Apple Inc., Google LLC, and their affiliates are not responsible for the Services, Membership Benefits, maintenance, customer support, Provider performance, warranties, or claims arising from use of the Application. Where required by Apple's licensing terms, Apple and its subsidiaries shall be deemed third-party beneficiaries of these Terms solely with respect to the Application license.

**Device Compatibility**

RSQMECLUB.COM does not guarantee compatibility with every mobile device, operating system version, wireless carrier, GPS chipset, or network environment. Certain features may require current software versions and internet connectivity.

**Electronic Communications**

Members consent to receive operational communications by email, SMS, telephone, push notification, and in-app messaging regarding Service Dispatches, billing, Membership administration, security, and account notifications. Standard messaging and data rates may apply.

**Software Updates**

The Company may deploy updates, patches, security fixes, or feature enhancements. Continued use of outdated software may limit functionality or prevent access to certain Services.

**PRIVACY, DATA, AND LOCATION SERVICES****Privacy Policy**

Collection, use, disclosure, storage, and protection of personal information are governed by the RSQMECLUB.COM Privacy Policy, which is incorporated into these Terms by reference.

**Geolocation Services**

Members authorize RSQMECLUB.COM to collect and process precise and approximate location information necessary for service dispatch, routing, service verification, fraud prevention, and operational improvements. Disabling location services may prevent some or all Services from functioning.

**Communications and Records**

The Company may retain service dispatch records, service history, photographs, messages, call logs, GPS information, and payment metadata for customer support, legal compliance, fraud investigations, quality assurance, and business operations.

### **Third-Party Services**

RSQMECLUB.COM may utilize third-party providers for payment processing, mapping, messaging, hosting, analytics, identity verification, and cloud infrastructure. The Company is not responsible for service interruptions or independent actions of those providers.

### **Security**

The Company employs commercially reasonable administrative, technical, and physical safeguards to protect personal information but cannot guarantee absolute security of electronic communications or stored information.

## **ACCEPTABLE USE AND INTELLECTUAL PROPERTY**

### **Acceptable Use**

Users agree not to submit fraudulent requests, misuse Membership Benefits, harass Service Providers, interfere with service dispatch operations, reverse engineer the Application, upload malicious software, or use the services for unlawful or commercial purposes unless expressly authorized.

### **User Content**

Members and Service Providers retain ownership of photographs and other content they submit but grant RSQMECLUB.COM a worldwide, non-exclusive, royalty-free license to use, reproduce, store, transmit, and display such content for providing the Services, resolving disputes, fraud prevention, and legal compliance.

### **Intellectual Property**

All trademarks, service marks, logos, software, databases, service dispatch workflows, written materials, graphics, and proprietary technology are owned by or licensed to RSQMECLUB.COM and are protected by applicable intellectual property laws.

### **Reservation of Rights**

Except for the limited license expressly granted to Members, no ownership interest or intellectual property rights are transferred by these Terms.

## **DISCLAIMERS, LIABILITY, AND INDEMNIFICATION**

### **Warranty Disclaimer**

The Services are provided on an 'AS IS' and 'AS AVAILABLE' basis to the fullest extent permitted by law. RSQMECLUB.COM disclaims all express and implied warranties, including warranties of merchantability, fitness for a particular purpose, and non-infringement.



### **No Guarantee of Service**

The Company does not guarantee Service Provider availability, response times, successful completion of any roadside service, uninterrupted application availability, or compatibility with all devices or network conditions.

### **Limitation of Liability**

To the fullest extent permitted by law, RSQMECLUB.COM shall not be liable for indirect, incidental, consequential, special, exemplary, or punitive damages arising from use of the Services. Aggregate liability shall not exceed the greater of One Hundred Dollars (US \$100) or the Membership fees paid by the Member during the twelve (12) months preceding the event giving rise to the claim.

### **Force Majeure**

RSQMECLUB.COM shall not be responsible for delays or failures caused by severe weather, natural disasters, road closures, governmental actions, labor disputes, internet outages, cyber incidents, utility failures, telecommunications interruptions, or other events beyond the Company's reasonable control.

### **Indemnification**

Members and Service Providers agree to defend, indemnify, and hold harmless RSQMECLUB.COM, its owner, contractors, licensors, payment processors, and Independent service providers from claims, losses, liabilities, damages, costs, and reasonable attorneys' fees arising from misuse of the Services, violation of these Terms, roadside incidents, or unlawful conduct.

## **DISPUTE RESOLUTION, GOVERNING LAW, AND ARBITRATION**

### **Governing Law**

These Terms shall be governed by the laws of the State of Washington, without regard to conflict-of-law principles. Applicable federal law shall govern where required.

### **Good Faith Resolution**

Before initiating arbitration or litigation, the parties agree to make a good-faith effort to resolve disputes through written notice and informal discussions for at least thirty (30) days.

### **Binding Arbitration**

Except where prohibited by law, disputes arising from these Terms or the Services shall be resolved through binding arbitration administered by a mutually recognized arbitration provider. Judgment on the award may be entered in any court of competent jurisdiction.

### **Class Action Waiver**

To the fullest extent permitted by law, claims shall be brought only in an individual capacity. Members and Providers waive any right to participate in class, consolidated, representative, or private attorney general actions.

### **Exceptions**

Either party may seek temporary injunctive relief to protect intellectual property, confidential information, or other rights where immediate court intervention is appropriate.

## **GENERAL PROVISIONS**

### **Modifications**

RSQMECLUB.COM may revise these Terms from time to time. Material changes will become effective after reasonable notice through the Application, website, email, or other lawful means. Continued use of the Services constitutes acceptance of the revised Terms.

### **Severability**

If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

### **Waiver**

No waiver of any provision shall be effective unless in writing. Failure to enforce any provision shall not constitute a continuing waiver.

### **Assignment**

Members may not assign these Terms without prior written consent. The Company may assign these Terms in connection with a merger, financing, acquisition, asset sale, reorganization, or other business transaction.

### **Survival**

Sections relating to payments, intellectual property, limitations of liability, indemnification, arbitration, governing law, and any obligations intended by their nature to survive termination shall survive.

### **Entire Agreement**

These Terms, together with the Privacy Policy and any incorporated policies or schedules, constitute the entire agreement between the parties concerning the Services.

### **Contact Information**

Questions regarding these Terms may be directed to RSQMECLUB.COM using the contact information published on the Company's official website.

## **APPENDIX A – Membership Benefits Schedule**

## **APPENDIX B – Eligible & Excluded Vehicles**

## **APPENDIX C – Fair Use Policy**

## **APPENDIX D – Geographic Coverage & Operational Limitations**

## **APPENDIX E – Fee Schedule & Overage Charges**

### **Appendix A – Membership Benefits Schedule**

This Appendix forms part of the RSQMECLUB.COM Terms of Service. Membership pricing, benefits, service limits, and operational policies may be modified by the Company upon reasonable notice and in accordance with applicable law.

#### **Bronze Membership**

**Pricing:** \$10.99/month or \$105/year

##### **Included Benefits**

- Three (3) roadside assistance Roadside Assistance Events per membership year
- Tire Change Assistance
- Battery Jump-Start Service
- Lockout Assistance
- Fuel Delivery (fuel billed at current market cost)
- One (1) Tow per membership year (\$99 hook fee + \$4.50 per mile)
- Target ETA: 60 minutes (not guaranteed)

#### **Silver Membership**

**Pricing:** \$17.99/month

##### **Included Benefits**

- All Bronze Membership benefits
- Five (5) roadside assistance events per membership year
- One (1) included Tow per membership year
- Up to five (5) towing miles included per covered tow
- Priority Service Dispatch over Bronze Members
- Fuel delivery with up to three (3) gallons included
- Target ETA: 45 minutes (not guaranteed)

#### **Gold Membership**

**Pricing:** \$27.99/month

**Included Benefits**

- All Silver Membership benefits (fuel delivery up to 5 gallons)
- Six (6) roadside assistance events per membership year
- Two (2) included Tows per membership year
- Up to ten (10) towing miles included per covered tow
- Winching (where available)
- Highest Service Dispatch priority
- Expanded roadside assistance benefits
- Target ETA: 30 minutes (not guaranteed)

**Membership Conditions (Applies to All Membership Plans)**

- Membership benefits are available only while the Membership is active and in good standing.
- Unused Roadside Assistance Events do not roll over into subsequent membership periods unless expressly stated otherwise.
- Service availability depends upon Service Provider availability, weather, traffic, road conditions, cellular connectivity, and other operational factors.
- Estimated arrival times are service targets only and are not guaranteed.
- Additional towing mileage, labor, recovery, storage, taxes, specialty equipment, tolls, fuel costs, and other approved charges remain the Member's responsibility unless expressly included in the applicable Membership.

**Definition of a Roadside Assistance Roadside Assistance Event**

A roadside assistance event may include multiple roadside services performed during the same Service Dispatch for the same roadside incident (for example, a jump-start followed by a tire change). Additional Service Dispatches for separate incidents count as additional Roadside Assistance Events. RSQMECLUB.COM reserves the right, in its reasonable discretion, to determine whether multiple service dispatches arise from the same roadside incident.

**Appendix B – Eligible & Excluded Vehicles**

This Appendix forms part of the RSQMECLUB.COM Terms of Service and identifies the general classes of vehicles eligible for Membership Benefits. Vehicle eligibility is determined by RSQMECLUB.COM at the time of service based on safety, accessibility, provider capability, and applicable law.

**Eligible Vehicles**

- Membership Benefits generally apply to privately owned vehicles used for personal transportation, including:
  - Passenger sedans

- Coupes
- Station wagons
- Minivans
- Sport Utility Vehicles (SUVs)
- Crossovers (CUVs)
- Pickup trucks up to  $\frac{3}{4}$ -ton gross capacity
- Factory-equipped four-wheel-drive passenger vehicles

### **Vehicles Requiring Prior Approval or Special Charges**

- One-ton pickup trucks
- Cargo vans
- Small trailers
- Vehicles requiring flatbed towing
- Vehicles requiring specialty recovery equipment

### **Excluded Vehicles**

- Commercial fleet vehicles
- Vehicles actively engaged in rideshare or commercial delivery at the time of service
- Taxis and limousines
- Semi-trucks and tractor-trailers
- Buses
- Motorhomes (RVs)
- Construction or agricultural equipment
- Boats, boat trailers, ATVs, UTVs, snowmobiles
- Salvage or abandoned vehicles
- Vehicles without valid registration where prohibited by law
- Vehicles located off maintained roadways requiring heavy recovery
- Vehicles exceeding provider equipment limitations

### **Roadside Service Limitations**

- Services are limited to locations that can be safely reached by the assigned Service Provider.
- Members must remain with, or provide lawful access to, the vehicle unless otherwise instructed.
- Recovery from private property may require the property owner's authorization.
- Extreme weather, natural disasters, road closures, or unsafe conditions may delay or prevent service.
- Some services may require referral to a licensed towing or recovery provider and may result in additional charges and/or an additional service dispatch.

## **Company Reservation of Rights**

RSQMECLUB.COM reserves the right to determine vehicle eligibility, require specialty equipment, decline unsafe service requests, or assess additional charges when a requested service exceeds the benefits included in the Member's plan. Nothing in this Appendix guarantees that every vehicle or roadside condition can be serviced.

## **Appendix C – Fair Use Policy**

This Fair Use Policy forms part of the RSQMECLUB.COM Terms of Service. Its purpose is to ensure Membership Benefits remain available for genuine roadside emergencies while protecting the integrity of the RSQMECLUB.COM network for all Members.

### **Purpose**

Membership Benefits are intended for unforeseen roadside assistance needs and not as a substitute for routine vehicle maintenance, commercial roadside operations, or repeated non-emergency services.

### **Appropriate Use**

- Examples of appropriate Membership use include:
  - Dead battery requiring a jump-start.
  - Flat tire requiring roadside assistance.
  - Vehicle lockout.
  - Running out of fuel while traveling.
  - Mechanical breakdown requiring towing.
  - Emergency roadside assistance while operating an eligible vehicle.

### **Misuse of Membership Benefits**

- Repeated requests resulting from poor vehicle maintenance.
- Using Membership Benefits for commercial or business purposes.
- Sharing Membership Benefits with non-members.
- Knowingly submitting false or misleading service requests.
- Requesting service for an ineligible vehicle.
- Providing inaccurate GPS or location information.
- Repeatedly cancelling after a Provider has been Service Dispatched.
- Abusive, threatening, discriminatory, or unsafe conduct toward Service Providers or Company personnel.
- Attempting to manipulate service limits or Service Dispatch procedures.
- Using multiple accounts to circumvent Membership limitations.
- Fraudulent chargebacks or payment disputes.

## **Excessive Use**

Even where individual service requests would otherwise qualify, an unusual frequency or pattern of requests may indicate abuse. RSQMECLUB.COM reserves the right to review Membership activity to determine whether requests are consistent with ordinary personal roadside assistance needs.

## **Company Investigation**

The Company may investigate suspected misuse using service dispatch records, photographs, GPS data, communications, payment records, and other operational information. Members are expected to cooperate with reasonable requests for information during an investigation.

## **Enforcement**

- Issue a written warning.
- Require additional verification before future service dispatches.
- Deny a specific service request.
- Suspend Membership Benefits.
- Terminate Membership for material abuse or fraud.
- Recover unpaid fees, fraudulent payments, or damages where permitted by law.

## **Good Faith Exceptions**

The Company recognizes that unusual circumstances may result in multiple legitimate roadside incidents within a short period. Fair Use determinations will consider the Member's overall history, the facts of the incident, weather, travel conditions, and other relevant circumstances.

## **Reservation of Rights**

Nothing in this Policy limits the Company's right to protect the safety of its Members, Service Providers, employees, contractors, or the public, or to prevent fraud, abuse, or unlawful activity.

## **Appendix D – Geographic Coverage & Operational Limitations**

This Appendix forms part of the RSQMECLUB.COM Terms of Service and describes the geographic scope of Membership Benefits and the operational factors that may affect service availability, response times, and service dispatch capabilities.

## **Initial Service Area**

At launch, RSQMECLUB.COM intends to provide services within designated areas of the States of Oregon and Washington through its independent Provider network.

The Company may expand, reduce, suspend, or modify service areas at any time based on Provider availability, business needs, regulatory requirements, or operational conditions.

### **Service Availability**

- Availability of qualified Providers.
- Member's geographic location.
- Road accessibility.
- Weather conditions.
- Traffic congestion.
- Emergency events.
- Wildfires, floods, earthquakes, or other natural disasters.
- Cellular, GPS, or internet connectivity.
- Government restrictions or road closures.

### **Response Time Expectations**

Estimated arrival times displayed within the Application or communicated by RSQMECLUB.COM are estimates only and are provided for informational purposes. Estimated arrival times are not contractual guarantees.

### **Rural and Remote Areas**

Service in rural, mountainous, coastal, wilderness, or otherwise remote locations may be limited or unavailable. Longer response times and additional charges may apply where specialized equipment or extended travel is required.

### **Unsafe or Inaccessible Locations**

Providers may decline or delay service when a location cannot be reached safely, requires specialized recovery equipment beyond the Member's benefits, or presents unreasonable risks to personnel, equipment, or the public.

### **Emergency Situations**

RSQMECLUB.COM is not an emergency response service. If you are experiencing a medical emergency, fire, crime, traffic accident involving injuries, or any situation requiring immediate governmental assistance, call 911 immediately before requesting roadside assistance.

### **Expansion of Operations**

As the RSQMECLUB.COM Provider network grows, the Company may expand into additional states or regions. Expansion does not create an obligation to provide service in every community or geographic area.



## **Reservation of Rights**

Nothing in this Appendix guarantees that roadside assistance will be available in every location or under every circumstance. RSQMECLUB.COM reserves the right to modify operational service areas, service dispatch procedures, Service Provider coverage, and service availability to maintain safe, lawful, and commercially reasonable operations.

## **Appendix E – Fee Schedule & Additional Charges**

This Appendix forms part of the RSQMECLUB.COM Terms of Service. Unless expressly included in the Member's selected Membership Plan, the following fees and charges may apply. Actual pricing may vary based on location, Provider rates, vehicle type, service complexity, and applicable law.

### **Membership Fees**

- Monthly and annual Membership fees are published by the Company.
- Membership fees are billed in advance and renew automatically unless cancelled in accordance with the Terms of Service.

### **Towing Charges**

- Bronze Membership: One (1) tow per membership year requires a \$99 hook fee; Member pays \$4.50 per mile towed.
- Silver Membership: One (1) tow included per membership year, up to five (5) towing miles included per covered tow; additional mileage billed at the applicable member rate.
- Gold Membership: Two (2) tows included per membership year, up to ten (10) towing miles included per covered tow; additional mileage billed at the applicable member rate.
- Heavy-duty towing, specialty recovery, or non-standard equipment may incur additional charges.

### **Fuel Delivery**

- Fuel delivery is available subject to Membership Benefits.
- The Member is responsible for the cost of fuel unless expressly included in the Membership Plan.
- Fuel pricing is based on the prevailing local retail rate or Provider cost, as applicable.

### **Recovery & Specialty Services**

- Winching beyond standard roadside recovery.
- Off-road recovery.
- Vehicle extraction.
- Flatbed towing when required.
- Specialty equipment or labor.

### **Storage, Tolls & Government Fees**

- Vehicle storage charges imposed by towing facilities.
- Bridge tolls, ferry fees, road tolls, and parking charges incurred during service.
- Applicable taxes and government-imposed fees.

### **After-Hours & Extraordinary Circumstances**

- Additional charges may apply for services performed during extreme weather, natural disasters, restricted access locations, or where specialized resources are required, if permitted by law and disclosed before service when reasonably practicable.

### **Payment**

- All additional charges must be authorized by the Member before completion of service whenever reasonably practicable.
- Approved charges may be processed using the payment method associated with the Member's account.

### **Reservation of Rights**

- RSQMECLUB.COM may update this Fee Schedule from time to time upon reasonable notice.
- No fee will be assessed where prohibited by applicable law.